



1357 MONROE AVENUE | ROCHESTER, NY 14618

BROKER EXCLUSIVE RIGHT TO REPRESENT AGREEMENT

Commissions or fees for real estate services to be provided hereunder are negotiable between Broker and Buyer. It is understood that the Greater Rochester Association of Realtors®, Inc. (“GRAR”) and the Genesee Region Real Estate Information Service, Inc. (“GENRIS”) are not parties to this Buyer Agency Agreement.

1. Appointment of Broker: The BUYER/PURCHASER

_____ (hereinafter called the “CLIENT”) retains and authorizes as Elysian Homes by Mark Siwiec and Associates (hereinafter called the “BROKER”), represented by _____ (agent), as Buyer’s exclusive agent to locate and/or negotiate for the purchase or lease of real property of the general nature shown below. Buyer acknowledges that Broker may be an agent for an owner in the sale or lease of property in which Buyer expresses an interest, whereupon Broker shall promptly notify Buyer of such conflict of interest and available options. An “exclusive right to represent” agreement means that if you, the Buyer, find a property to purchase or lease, or if another Broker finds you a property, you must pay the agreed compensation to the present Broker.

2. Agreement Period: This agreement begins upon signing and ends on _____, 20____, or upon the closing of a property purchased under this agreement.

3. Broker's Obligations: The BROKER/AGENT will:

- Use diligence in locating a property on price and terms acceptable to the CLIENT.
- Use professional knowledge and skills to negotiate for CLIENT’S purchase of the property.
- Assist CLIENT throughout the transaction and act in the CLIENT’s best interest at all times.
- Personally present the purchase offer to the Seller or Listing Broker unless otherwise directed by the CLIENT.
- Negotiate the contract presented by the CLIENT.

4. Client's Obligations: The CLIENT will:

- Work exclusively with the BROKER during the period of this Agreement in all matters pertaining to the purchase of real property located within the Greater Rochester market



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area including but not limited to MLS listings, private listings (For Sale By Owners), New Construction, and Land, with the following exceptions:

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- _____
Furnish BROKER with all requested personal and financial information necessary to complete this transaction.

5. Compensation: The CLIENT agrees to compensate the BROKER if the CLIENT, or any other person acting on the CLIENT'S behalf, buys, exchanges for, or obtains an option on any real property. The amount of the compensation shall be:

- If the property is listed with a real estate company or licensee, BROKER will accept a fee equal to the fee offered to the cooperating agents; but in any event not less than _____% of the purchase price of the property, or a flat fee of \$ _____. If such fee, or any portion thereof, is paid by the Listing Broker, Seller, or Seller's agent as a convenience of the transaction, then CLIENT will pay any difference that exists between that which the seller is offering and _____% at closing.
- If the property is not listed with a real estate company or licensee, a fee of 3% of the purchase price, or a flat fee of \$ _____ will be paid at closing. If such fee, or any portion thereof, is paid by the Seller or Seller's agent as a convenience of the transaction, then CLIENT will pay any difference that exists between that which the seller is offering and _____% at closing.
- Other Compensation Agreement:

_____.

Note: If the CLIENT, within _____ days of the termination of this Agreement, purchases real property shown to the CLIENT by the BROKER during the term of this Agreement, compensation as set forth in this Agreement shall apply and a full brokerage fee shall be due the BROKER.

6. Advice on Matters Outside Scope of Broker: BROKER/AGENT will not counsel CLIENT on legal, home inspection, public health, surveying, tax financial, or other technical matters. Upon request, BROKER/AGENT will assist CLIENT in engaging qualified professionals to consult in such fields.



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7. Fair Housing: BROKER/AGENT is committed to the philosophy of Fair Housing for all people. Therefore, BROKER/AGENT will present properties to CLIENT in full compliance with local, state, and federal fair housing laws against discrimination on the basis of race, color, religion, sex, national origin, handicap, age, marital status, familial status, children, or other prohibited factors.

8. Property Listed with Broker: If CLIENT becomes interested in acquiring any property for which BROKER has a listing contract, CLIENT may:

- If the agent is the party who is responsible for the BROKER's listing, the buyer may elect to work with another Elysian Homes agent for this transaction if they wish.
- With the knowledge and informed consent in writing of both CLIENT and Seller, CLIENT may agree to dual agency. CLIENT understands that in such a dual agency situation, the agent will not be able to provide the full range of fiduciary duties to the CLIENT and Seller and that by consenting to the dual agency relationship, CLIENT and Seller are giving up the right to undivided loyalty.

9. Early Contract Termination: In the event this Agreement is terminated by Buyer prior to the time specified in Section 2 for any reason other than Broker's fault, Buyer will be liable for and will pay all damages and expenses incurred by Broker, including without limit any compensation due Broker in Section 5 above.

10. Professional Counsel: Broker hereby recommends that Buyer seek legal, tax, property financing, property inspection, appraisal, environmental engineering, and other professional advice (if appropriate) relating to any proposed transaction. Buyer agrees that Buyer will not rely on Broker for such professional advice nor rely on Broker for payment of such services.

11. Attorney's Fees: In any action, proceeding, or arbitration arising out of this Agreement, the prevailing party shall be entitled to reasonable attorney's fees and costs.

12. Entire Agreement and Assignability: This Agreement constitutes the complete Agreement between Broker and Buyer relating to the exclusive agency of Broker for Buyer. No modification of any terms of this Agreement shall be valid or binding unless such modification is in writing and signed by Buyer and Broker. This Agreement is not assignable without the written approval of Buyer and Broker.



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In consideration of the above, Buyer and Broker accept this Agreement and agree to its terms and conditions.

BUYER: _____

DATE: _____

BUYER: _____

DATE: _____

BUYER'S Agent: _____

DATE: _____

BROKER: _____

DATE: _____